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| | | A claim for intentional infliction of emotional distress requires a showing of a plaintiff's severe suffering or extreme emotional distress. (*Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 1001.) By asserting such a claim, Plaintiff has tendered her mental and emotional condition in this action and the interrogatories are limited to information relating to the emotional distress injuries claimed by Plaintiff. That information is material to the merit of Plaintiff's intentional infliction of emotional distress claim. Further, these interrogatories do not request any information that could fall under the umbrella of premature expert witness disclosure. Defendant is merely asking whether Plaintiff received care from any healthcare providers for her claimed severe emotional distress and, if so, the amount of medical expenses incurred or being claimed by her, none of which requires expert testimony. Thus, Plaintiff's privacy, relevance, and expert witness objections lack merit.<br><br>The Court notes that in response to No. 36, Plaintiff asserts that she is not yet eligible for Medicare and has no private insurance to which she might avail herself to see a healthcare provider since the date of the incident. This response suggests that Plaintiff has not received any services from healthcare providers in connection with her intentional infliction of emotional distress claim. If so, Plaintiff is required to state the same in a straightforward and direct manner.<br><br>For the reasons stated above, the Court finds further responses to Nos. 36-40 to be warranted as well.<br><br>In light of the above, the Motion to Compel Further Responses is GRANTED. Plaintiff is ORDERED to serve further responses within 20 days of the date of this order.<br><br>The Court finds Plaintiff's failure to provide sufficient responses was without substantial justification. Thus, Defendant's request for monetary sanctions is GRANTED in the amount of $1,500.00. (Code Civ. Proc., § 2030.300(d).) Sanctions to be paid within 30 days of the date of this order.<br><br>*Moving party to give notice.* |
| 105 | Segal vs. Tesla, Inc.,<br>26-01538545 | Defendant Tesla Inc. ("Tesla") will move the court to set aside the Default that was entered against it on June 5, 2026.<br><br>Here, the Declaration of Attorney Suard provides, "Due to an inadvertent error, the deadline for TESLA's responsive pleading passed, without TESLA filing any responsive pleading to Plaintiff's summons and complaint. Due to this error, the deadline for responsive pleading was not calendared and went unnoticed." Notably, no person from Tesla filed a declaration, and Suard does not have personal knowledge about why Tesla failed to timely submit the case |

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| | | to counsel. The default was entered on 6/5/2026. Thereafter, on 6/11/2026 Theta Law Firm was retained and has attempted to set aside the default. Id.¶7, 13. This motion was filed on 7/15/2026.<br><br>Despite the deficiencies in the declaration, where the party in default moves promptly to seek relief, and no prejudice to the opposing party will result from setting aside the default and letting the case go to trial on the merits, "very slight evidence will be required to justify a court in setting aside the default." [*Elston v. City of Turlock* (1985) 38 C3d 227, 233.]<br><br>As such, the Court exercises its discretion and GRANTS the unopposed Motion. No sanctions. Proposed Answer to be separately filed within 20 days.<br><br>The Case Management Conference is set for October 22, 2026 at 1:30 p.m.<br><br>*Moving party to give notice.* |
| 106 | Sea Purity, LLC vs. Four Thirteen, LLC,<br>22-01290692 | <u>Sea Purity</u><br>Plaintiff Sea Purity, LLC ("Plaintiff") seeks an order enforcing the Parties' Settlement Agreement and for entry of judgment against Defendants Four Thirteen, LLC, Joseph Gagliano; and Tracy Norton, individually and as Trustee of the Pelican Trust. The Court notes that there are additional Defendants in this action, including Jay Rogers, who are not named in the proposed judgment.<br><br>Code of Civil Procedure section 664.6(a) states: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement."<br><br>"A court ruling on a motion under Code of Civil Procedure section 664.6 must determine whether the parties entered into a valid and binding settlement. [Citations.] A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms. [Citations.] The court ruling on a motion may consider the parties' declarations and other evidence in deciding what terms the parties agreed to, and the court's factual findings in this regard are reviewed under the substantial evidence standard. [Citations.] If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement. [Citation.]" (*Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182.) |